Precedent memo: Pinecrest Realty v. Oduya

Benton County Circuit Court, decided 2021-11-03 - memo by the employment group

1. Holding

A commission dispute was decided on the written commission plan, not the broker's verbal promise.

2. Facts

Oduya claimed a verbal 4 percent split; the written plan said 3 percent.

3. Firm position

We represented Pinecrest. Get the written plan first.

4. Practice notes

Keep the dated documents from the first client call. The dates usually decide these cases.